

HOUSE No.

The Commonwealth of Massachusetts

PRESENTED BY:

Steven S. Howitt

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to hidden fees and price transparency.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Steven S. Howitt</i>	<i>4th Bristol</i>	<i>5/14/2026</i>

HOUSE No.

By Representative Howitt of Seekonk, a petition (subject to Joint Rule 12) of Steven S. Howitt relative to hidden fees and price transparency. Consumer Protection and Professional Licensure.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to hidden fees and price transparency.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 93A of the General Laws, as appearing in the 2024 Official
2 Edition, is hereby amended by inserting after section 11 the following section:-

3 Section 12. Transparent Pricing

4 (a) For purposes of this section, the following terms shall have the following meanings:

5 “Total price”, the maximum price a consumer is required to pay for a good or service,
6 excluding taxes imposed by a governmental entity.

7 “Mandatory fee”, any fee or charge that a consumer must pay as a condition of
8 purchasing a good or service.

9 “Optional fee”, any fee or charge that a consumer may decline without affecting the
10 ability to complete the transaction.

“Advertised price”, any price representation communicated to a consumer in marketing, advertising, or display.

(b) Any person engaged in trade or commerce shall clearly and conspicuously disclose the total price of a good or service at the time an advertised price is first presented to a consumer.

(d) Optional fees may be excluded from the advertised price, provided that the optional nature of the fee is clearly and conspicuously disclosed; and the consumer affirmatively elects to incur such fee.

(c) It shall be an unfair or deceptive act or practice to advertise or display a price that does not include all mandatory fees; fail to clearly and conspicuously disclose the nature and amount of any mandatory fee; misrepresent a mandatory fee as optional, or as a gratuity, service charge, or other similar term when such fee is retained in whole or in part by the seller; present fees in a manner that obscures or minimizes the total price.

(e) The Massachusetts Attorney General's Office may promulgate rules and regulations necessary to implement and enforce this section, including, but not limited to, standards for clear and conspicuous disclosure; industry-specific applications; examples of unfair or deceptive pricing practices.

(f) A violation of this section shall constitute an unfair or deceptive act or practice under this chapter.

(g) Nothing in this section shall be construed to limit any authority otherwise granted under this chapter.